April 5, 2021

APWU Clerk Division Director Brooks Post-Das Mission Statement

To: Arbitrator/USPS/APWU

Re: ARBITRATOR DAS Case No. Q15C-4Q-C 18148486 NATIONAL AWARD 7/24/20

This interpretive dispute was referred to the national level by the Postal Service.
The dispute involves the meaning of the sentence: "Every effort will be made to create desirable duty assignments from all available work hours for career employees to bid." This sentence was added to Article 37, Section 3.A.1 of the National Agreement in the 2010-2015 National Agreement.

POSTAL SERVICE

The Postal Service asserts the basic issue in dispute is whether this provision requires the Postal Service, when it decides to post a duty assignment for bid **or** is obligated by some other contractual provision to do so, to make every effort to create a duty assignment for career employees to bid that is "desirable," or whether, as asserted by the Union, Article 37.3.A.**1 requires** the Postal Service to make every effort to explore the work hours in a section or facility to see if it can operationally come up with newly established and additional duty assignments and post those for bid.

UNION

The Union contends that Article 37.3.A.1 speaks for itself – **it expressly requires** that the Postal Service create career duty assignments from available PSE work hours and post them for bid. Article 37.3.A.1 **makes no exception for where the work hours come from** or whether or how the duty assignments align with the number of career clerks.

ARBITRATOR DAS ANALYSIS OF THE ISSUE

As a general matter, the Postal Service has the right under Article 3 to determine whether and when to establish a new duty assignment. Like all management rights, this right is subject to other provisions of the CBA. These include provisions requiring posting of new assignments in Article 7.1.B.4 (hours worked by a PSE on the window), Article 7.3.C (PTF conversion) and Article 37.4.D (unencumbered Clerks). Under Article 37.3.A.1, the Postal Service is required to post vacant duty assignments unless the

duty assignment has been reverted.

The issue here is whether the "Every effort..." provision added to Article 37.3.A.1 in the 2010 National Agreement, pursuant to paragraph 19 of the NTFT MOU, **imposes an obligation** on the Postal Service to create new additional duty assignments **by combining/cobbling together all available work hours**, including PSE hours, thereby maximizing the number of career duty assignments.

Arbitrator Das Final Analysis

In the final analysis, the issue here essentially has to be decided on the basis of the language in Article 37.3.A.1. When read in context, this language supports the Postal Service position that it requires the Postal Service, when it decides to post a duty assignment for bid or is obligated by some other contractual provision to do so, to make every effort to create a duty assignment from all available work hours for career employees to bid that is "desirable."

It also is clear from the Brennan memorandum and accompanying Q&As that Article 37.3.A.1 **may require the Postal Service to modify and repost an existing duty assignment**. The language **does not, as the Union contends, broadly require** that the Postal Service create (and maximize) career duty assignments from available PSE and other work hours and post them for bid on the basis that such assignments in themselves always are desirable.

Arbitrator Das page 22, footnote #8

I express no opinion on whether this provision in a particular case might require the Postal Service to create an additional duty assignment for bid -- not just modify an existing duty assignment -- in a situation where the evidence demonstrates that such an assignment could be created from PSE and other work hours that is more desirable (hours/schedule) than one or more existing duty assignments. The parties did not focus on or sufficiently address that question in this proceeding.

Examples of Other Contractual Provisions

To include, but not limited to:

- Article 7.1.B.5 under 2018 CBA (hours worked by PSE on the window), formerly Article 7.1.B.4
- Article 37.4.D (unencumbered clerks)
- Article 7.3.C (PTF conversion)

- Article37.3. A.1 (vacant duty assignment), unless reverted, which can be challenged- Brooks/Dean clarification 1 and 2).
- Article 1.5 (new work)
- Article 12.B.2
- ARTICLE 13.4.M
- ARTICLE 7.2
- Article 8.2
- STEP 4, SEPTEMBER 5, 2018
- MARCH 11, 2011 MOU
- DOJ DECISION 2012
- SEPTEMBER 10, 2012 MOU & Q & A
- Article 37.3.A.2
- Article 37.1.E
- ARTICLE 12.5.C.4
- Article 30.B.18 (ITEM 18 LMOU)
- Article 37.3.B.2
- Job Audits MOU, page 269
- Clerical Work MOU, page 270
- New Positions and New Work MOU, page 270
- Contracting or Insourcing of Contracted Service MOU, page 340
- Contract Postal Units MOU, page 341
- Clerk Craft Jobs MOU, page 347
- Custodial Duties in Small Post Offices MOU, page 382
- NTFT MOUs (CBA pages 280-282)

It is the APWU's position that there are many other contractual provisions that require the Postal Service to post newly created duty assignments and this position is supported by Arbitrator Das.

The APWU submits the Das Arbitration award in support of our position.

Respectfully submitted,



Lamont Brooks
Director
Clerk Division
American Postal Workers Union, AFL-CIO